

24SMCV04434 24SMCV04434

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-21

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Source SHA-256: 2541a0311fbb723240cdcaa11b51dc1d0e6cf2e23b750cdea717b29d93588ef7

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 21, 2026

CASE NUMBER

24SMCV04434

MOTIONS

(1)

Seal

(2)

Protective Order

MOVING PARTIES

Plaintiffs Tova Glockner and David Glockner, individually
and as Trustees of the Glockner Family Trust Dated May 22, 1996

OPPOSING PARTIES

Defendants Russell Burke and Wendy Burke

MOTION

This case arises from allegations of water runoff and tree root damage to Plaintiffs' property caused by a neighboring property.

On September 13, 2024, Plaintiffs Tova Glockner and David Glockner, individually and as Trustees of the Glockner Family Trust Dated May 22, 1996 ("Plaintiffs") filed suit against Defendants Wendy Burke, Russell Burke, and Bel Air Glen Homeowners Association Inc. fka Beverly Glen Park Homeowner's Association Inc. ("Defendants") alleging nine causes of action as follows:

(1)

Breach of CC&Rs

(2)

Negligence

(3)

Breach of Fiduciary Duty

(4)

Trespass

(5)

Nuisance

(6)

Selective Enforcement

(7)

Elder Abuse

(8)

Temporary Restraining Order, Preliminary Injunction,
and Permanent Injunction

(9)

Declaratory Relief

On November 12, 2024, Defendant Bel Aire Homeowners Association (“HOA”) filed a cross-complaint against Roes 1 through 25 for equitable indemnity, contribution, and declaratory relief.

Plaintiffs now move for a protective order, precluding the depositions of Plaintiff David Glockner and third party Jennifer Glockner, who both live in the subject home, on the grounds that they suffer severe medical issues, while at the same time sealing from the public record certain HIPAA documents evidencing those medical issues and preventing access to them by anyone other than the named Defendants, the HOA's officers, and Defendants' attorneys.

HOA and the Burkes filed separate oppositions to Plaintiffs' motion for a protective order, to which Plaintiffs have replied. The Burkes also separately oppose Plaintiff's request to file the HIPAA documents under seal.

ANALYSIS

1. SEAL

Unless confidentiality is required by law, court records are presumed to be open to the public, pursuant to a potent “open court” policy undergirded by the First Amendment and favoring the public nature of court proceedings. (Cal. Rules of Court, rule 2.550(c); see NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1199-10.) Consequently, pleadings, motions, discovery documents, and other papers may not be filed under seal merely by stipulation of the parties; filing under seal requires a court order. (Cal. Rules of Court, rule 2.551(a); see H.B. Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.)

A sealing order must be sought by means of a motion (or application) and accompanied by a memorandum of points and authorities, as well as evidence and testimony containing facts sufficient to justify the mandatory findings required to support a sealing order. (Cal. Rules of Court, rules 2.550(d) & 2.551(b).) The proponent of the sealing order must also conditionally lodge the unredacted matter to be sealed with the court. (Cal. Rules of Court, rule 2.551(b)(4).)

To grant a motion to seal, a trial court must expressly find that: (1) an overriding interest exists that overcomes the right of public access to the record; (2) the overriding interest supports sealing the records; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550 (d).) “If the trial court fails to make the required findings, the order is deficient and cannot support sealing.” (*Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 487; see also *In re Marriage of Tamir* (2021) 72 Cal.App.5th 1068, 1087 [“express findings must be made to seal records”].)

Plaintiffs request to file the following documents under seal, for consideration by the Court in connection with Plaintiffs’ concurrent motion for a protective order (“the HIPAA Documents”):

(1)

Report of Dr. Judith L. Friedman, PsyD re David Glockner

(2)

Declaration of Daniel Benhur, M.D. re Jennifer Glockner

Plaintiffs contend Plaintiff David Glockner suffers severe Parkinsons Disease, cognitive issues and other health issues, and third party, Jennifer Glockner, who also lives in Plaintiffs’ home at issue, suffers severe health issues. The above documents support Plaintiffs’ claims that the medical conditions of both David and Jennifer Glockner are severe enough that neither is capable of sitting for deposition.

Notwithstanding their relevance to the underlying discovery dispute, Plaintiffs argue that these health conditions are protected by their respective constitutional rights to privacy, they should not be made part of the public record.

In support, Plaintiffs point out that the Health Insurance Portability and Accountability Act (“HIPAA”) prohibits “the unauthorized disclosure or sharing of a person’s medical information” and imposes both civil and criminal

penalties on those who do so. (See County of San Diego v. Mason (2012) 209 Cal.App.4th 376, 382.)

Similarly, California's Confidentiality of Medical Information Act ("CMIA") prohibits disclosure of a patient's medical information without authorization (Civ. Code, §§ 56 et seq.) and California Health and Safety Code section 11845.5 prevents the unauthorized disclosure of the patient's identity, diagnosis, prognosis, and treatment.

Further, patients have a privacy interest in their doctor's medical records pertaining to their physical or mental condition, including "descriptions of symptoms, family history, diagnoses, test results, and other intimate details concerning treatment." (Lewis v. Superior Court (2017) 3 Cal. 5th 561, 575.)

Thus, Plaintiffs have established a constitutional and statutory right to privacy in the subject medical records that override the public's interest, supporting sealing the records from public view, which Defendants do not oppose. Rather, Defendants' opposition to the motion to seal focuses on arguments pertinent to their motion for a protective order that Defendants should be able to thoroughly examine the documents.

In light of the detailed information about David and Jennifer Glockner's respective health issues in the exhibits, the Court agrees that their privacy rights would be substantially infringed if the documents were not sealed. Further, the sealing request is narrowly tailored to the two documents, and no less restrictive means exist to protect their privacy interests.

Therefore, the Court grants Plaintiffs' motion to seal Exhibits 1 and 2 from the public record.

2. PROTECTIVE ORDER

Per Code of Civil Procedure section 2025.420, subdivision (a), "[b]efore, during, or after a deposition, any party, any deponent, or any other affected natural person or organization may promptly move for a protective order. The motion shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2025.420, subd. (a).) Section 2016.040

provides that “[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.”

(Emphasis added.)

“The court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2025.420, subd. (b).) “Generally, a deponent seeking a protective order will be required to show that the burden, expense, or intrusiveness involved in [the discovery procedure] clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Emerson Electric Co. v. Superior Court (1997) 16 Cal.4th 1101, 1110.) “A party seeking the protective order must show by a preponderance of the evidence that the issuance of a protective order is proper.” (Stadish v. Superior Court (1999) 71 Cal.App.4th 1130, 1145.)

Plaintiffs seek to exempt David and Jennifer Glockner from sitting for deposition, in light of their medical conditions, as evidenced by Exhibits 1 and 2 filed under seal. Plaintiffs also seek to prevent anyone other than Defendants to this litigation, the HOA's officers, and Defendants' attorneys from accessing Exhibits 1 and 2.

a. Exhibits

1 and 2

According to Plaintiffs, the dispute over the disclosure of Exhibits 1 and 2 appears to stem from the HOA's insurance carrier, who wants to insert language into the protective order permitting the sharing of Exhibits 1 and 2 with the insurance carrier, and permitting the insurer to retain such documents, to disclose them to regulators, rating agencies, reinsurers, coinsurers, retrocessionaires, auditors, and attorneys. While Plaintiffs offered to add the insurance adjuster to the protective order, Plaintiffs would not otherwise agree to the expansive language.

By contrast, Defendants argue that Plaintiffs are preventing them “from adequately reviewing the complete medical evidence relied upon to justify” the relief sought. Specifically, Defendants

request “a meaningful opportunity to examine the evidence relied upon by Plaintiffs’ experts” including “complete unredacted reports.”

The parties appear to be arguing past each other. Plaintiff is concerned with Defendants’ attempt to allow the HOA’s insurance carrier to retain and disclose Exhibits 1 and 2, while Defendants appear to be requesting the underlying medical reports upon which Exhibits 1 and 2 are based.

Ultimately, Defendants’ arguments regarding the underlying medical reports are not ripe, as they are not part of Plaintiffs’ motion for a protective order. With respect to Exhibits 1 and 2, Defendants have not opposed Plaintiffs’ proposed solution of naming the specific insurance adjuster only to the protective order.

Therefore, with respect to Exhibits 1 and 2, Plaintiff’s’ proposed protective order is granted in part, with the proviso that the HOA’s insurance adjuster be added to the protective order.

b. Depositions

Regarding David Glockner, upon review of Exhibit 1, although Dr. Leone-Friedman concludes that he lacks the capacity to sit for a deposition, the report results themselves indicate only “mild” impairment.

Thus, while the Court agrees that Mr. Glockner’s impairments will likely require reasonable accommodations, the Court does not find Plaintiffs have met their burden to demonstrate that Mr. Glockner is entirely unable to sit for deposition.

Regarding Jennifer Glockner, Exhibit 2 demonstrates that although Jennifer purportedly suffers a litany of physical issues which may become exacerbated by the stress of a deposition, regardless of where or how it is taken, she has not been formally diagnosed with all conditions to which the report alludes. (Ex. 2 at ¶ 8). The report also notes that Jennifer consults with doctors from her own home via house calls or telemedicine.

Therefore, while the Court agrees that Ms. Glockner’s physical condition will likely require accommodations, the Court does not find Plaintiffs have met their burden to demonstrate that Jennifer Glockner is entirely unable to sit for a deposition

conducted in her own home, with reasonable accommodations to keep her safe.

CONCLUSION

AND ORDER

The Court grants Plaintiffs' motion to file Exhibits 1 and 2 under seal. To the extent Defendants request in opposition to review the underlying medical reports upon which Exhibits 1 and 2 are based, such requests are not ripe.

Further, the Court grants in part and denies in part Plaintiffs' request for a protective order. With respect to Exhibits 1 and 2, Plaintiffs' request for a protective order is granted in part, with the exception that the HOA's insurance adjuster be added to the list of individuals authorized to review Exhibits 1 and 2. As such, Plaintiffs shall lodge a proposed Protective Order in conformity with the Court's ruling on or before July 31, 2026.

With respect to the depositions of David and Jennifer Glockner, the Court grants in part Plaintiffs' request for a protective order and orders David and Jennifer to sit for deposition, but with reasonable accommodations as to time, place, and manner of the depositions to account for their respective physical and mental impairments outlined in Exhibits 1 and 2. To that end, the Court orders the parties to meet and confer to ensure that the depositions are completed in a timely fashion.

Plaintiffs shall provide notice of the Court's ruling and file the notice with proof of service forthwith.

DATED:

July 21, 2026 _____/s/ _____

Michael E. Whitaker

Judge
of the Superior Court